

THE CITY OF NEW YORK
FINANCIAL MANAGEMENT SYSTEM
ADVICE OF AWARD REVISION
EXPENSE/GENERAL CONTRACT

DATE: [REDACTED]

PAGE: 1

FINAL

TAXPAYER ID: [REDACTED]

BATCH ID: [REDACTED]

CONTRACT NUMBER: [REDACTED]

AMENDMENT NUM: [REDACTED]

VERSION NUM: [REDACTED]

VENDOR ADDR IND: [REDACTED]

OCA NUMBER: [REDACTED]

MOD NUMBER: [REDACTED]

VENDOR: [REDACTED]
[REDACTED]

ALIAS/DBA:

CONTACT: [REDACTED]

PHONE: [REDACTED]

ADDRESS: [REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]

CONTRACT TITLE: [REDACTED]

PIN: [REDACTED]

DESCRIPTION: [REDACTED]

ORIGINAL AMT: [REDACTED]

ORIGINAL START: [REDACTED]

END: [REDACTED]

REVISED AMT: [REDACTED]

REVISED START: [REDACTED]

END: [REDACTED]

CURRENT CHANGE: [REDACTED]

RESP AGENCY: [REDACTED]

INC/DEC INDICATOR: [REDACTED]

SUBMITTING AGCY: [REDACTED]

CONTRACT OFFICER: [REDACTED]

PHONE: [REDACTED]

COMMENTS:

CONTRACT TYPE: [REDACTED]

CLASS [REDACTED]

AWARD METHOD: [REDACTED]

AWARD LEVEL:

CATEGORIES 1: [REDACTED]

2:

3:

4:

5:

CONSTRUCTION RELATED: N

REDUCED ADVERTISING: N

HEARING DATE:

MINORITY: WOMAN

LOCAL:

NOT-FOR-PROFIT:

MWBE UTILIZATION CLAUSE: N

LOCATION INFORMATION

SERVICE LOCATION: [REDACTED]

ZIP CODE: [REDACTED]

BOROUGH:

BLOCK:

LOT:

COUNCIL DISTRICT:

DELIVERY DATE: [REDACTED]

DELIVER TO:

INVOICE TO: [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

DEPT: 015

SHIP CODE:

DEPT: 015

BILL CODE: [REDACTED]

THE CITY OF NEW YORK
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ADVICE OF AWARD REVISION
EXPENSE/GENERAL CONTRACT

DATE: [REDACTED]

PAGE: 2

TAXPAYER ID: [REDACTED] FINAL

BATCH ID: [REDACTED]

015

CONTRACT NUMBER: [REDACTED]

015 [REDACTED]

AMENDMENT NUM:

VERSION NUM: 1

VENDOR ADDR IND: 4

OCA NUMBER: [REDACTED]

V [REDACTED]
[REDACTED]

MOD NUMBER: [REDACTED]

015 [REDACTED]

ALIAS/DBA:

CONTRACT INFORMATION

REFERENCE INFORMATION

REFERENCE CODE: MOD

REFERENCE CONTRACT:

INTERNAL AWARD NUMBER:

SOLICITATION NUMBER:

REPLACES CONTRACT:

NUMBER OF RESPONSES: 1

OUT OF NUM OF SOLICITATION: 1

COMPLIANCE INFORMATION

COMPLIANCE CRITERIA	1. MCBRIDE	N	2. OLIVINGWAG	N	3.	N
	4.	N	5.	N		

NON COMPLY REASON: BOND CONTRACTS ARE EXEMPT

WORKSITES / COMMUNITY / BOARD CODES

WORKSITES	1. M01	2.	3.	4.	5.
	6.	7.	8.	9.	10.

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DATE: [REDACTED]

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FINAL

TAXPAYER ID: [REDACTED]

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015

CONTRACT NUMBER: [REDACTED]

015 [REDACTED]

AMENDMENT NUM:

VERSION NUM: 1

VENDOR ADDR IND: 4

OCA NUMBER: [REDACTED]

VENDOR: [REDACTED]

MOD NUMBER: [REDACTED]

015 [REDACTED]

ALIAS/DBA:

ACCOUNTING INFORMATION

COMM LINE	ACTG LINE	FUND	DEPT	APPR UNIT	BUDGET CD	DTL OBJ/SUB	REPT CAT/ QUICK	CAP PROJ	UNIT/ SUNIT	TASK	LINE AMT
24	1	001	099	001	1000	6180					+ \$407,000.00

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DATE: [REDACTED]

PAGE: 4

FINAL

TAXPAYER ID: [REDACTED]

BATCH ID: [REDACTED]

015

CONTRACT NUMBER: [REDACTED]

015 [REDACTED]

AMENDMENT NUM:

VERSION NUM: 1

VENDOR ADDR IND: 4

OCA NUMBER: [REDACTED]

MOD NUMBER: [REDACTED]

VENDOR: [REDACTED]

[REDACTED]

ALIAS/DBA:

I HAVE EXAMINED THIS ADVICE OF AWARD OF CONTRACT AND CERTIFY THAT THE AWARD WAS MADE TO THE LOWEST RESPONSIBLE BIDDER, AND/OR IN ACCORDANCE WITH THE PROVISIONS OF THE APPROPRIATE SECTIONS OF THE NYC CHARTER, AT THE PRICE BID BY SUCH BIDDER, AND THAT IT IS CORRECT AS TO CALCULATION AND EXTENSION AND THAT THE AWARD WAS PROPERLY MADE.

I CERTIFY THAT I HAVE CHECKED THE CONTRACTOR'S RECORD PURSUANT TO SECTIONS 6-116.1 AND 6-116.2 OF THE ADMINISTRATIVE CODE OF THE CITY OF NEW YORK.

I FURTHER CERTIFY THAT THIS AWARD IS A PROPER EXPENDITURE AND THE LIABILITY HAS BEEN CHARGED TO THE PROPER FUND OR FUNDS.

AGENCY [REDACTED]

TELEPHONE # [REDACTED]

PREPARED BY (PRINT) [REDACTED]

PREPARED BY (SIGNATURE) *Alice Liu*

AUTHORIZED OFFICIAL'S NAME & TITLE

[REDACTED]

TELEPHONE # [REDACTED]

AUTHORIZED AGENCY OFFICIAL (SIGNATURE)

BA Wagner



CITY OF NEW YORK
OFFICE OF THE COMPTROLLER
BRAD LANDER

JOHN K. KATSORHIS
AGENCY CHIEF CONTRACTING OFFICER

BUREAU OF ADMINISTRATION

MEMORANDUM

To: [REDACTED]

From: [REDACTED] *AM*

Date: December 6, 2024

Re: Contract Registration for the Fourth Amendment to the Reimbursement Agreement for Letter of Credit Services for New York City General Obligation [REDACTED] CTR [REDACTED]
[REDACTED]

The attached Advice of Award [REDACTED] is being submitted for registration of an existing expense funded contract, PIN # 01508PFIN025 with Bank of America NA, for the Fourth Amendment to Reimbursement Agreement for Letter of Credit Services for New York City General Obligation FY 2008 L-3. The contract shall be extended for an additional period of three years, during the dates of 7/29/2024 through 7/29/2027. The total contract value shall be increased by [REDACTED]

All pertinent documentation is included for review.

Please feel free to contact me at [REDACTED] if any additional questions arise. Thank you for your attention to this matter.

**FOURTH AMENDMENT TO
REIMBURSEMENT AGREEMENT**

This FOURTH AMENDMENT TO REIMBURSEMENT AGREEMENT (this “*Amendment*”) dated July 22, 2024 (the “*Effective Date*”), is between THE CITY OF NEW YORK, a New York municipal corporation (the “*Issuer*” or the “*City*”), and BANK OF AMERICA, N.A. (the “*Bank*”). All capitalized terms used herein and not defined herein shall have the meanings set forth in the hereinafter defined Agreement.

W I T N E S S E T H

WHEREAS, the Issuer and the Bank have entered into that certain Reimbursement Agreement dated as of April 1, 2017, as amended by the First Amendment to Reimbursement Agreement dated March 26, 2020, the Second Amendment to Reimbursement Agreement dated July 16, 2020 and the Third Amendment to Reimbursement Agreement dated July 16, 2021 (as may be further amended, restated, supplemented or otherwise modified from time to time, the “*Agreement*”), relating to the [REDACTED] aggregate principal amount of the Issuer’s General Obligation Bonds, Fiscal 2008, Series L, Subseries L-3 (Adjustable Rate Bonds) (the “*Bonds*”); and

WHEREAS, pursuant to Section 8 of the Agreement, the Agreement may be amended by a written amendment thereto, signed by the Issuer and the Bank;

NOW THEREFORE, in consideration of the premises, the parties hereto hereby agree as follows:

1. AMENDMENTS TO THE AGREEMENT.

Upon satisfaction of the conditions precedent set forth in Section 2 hereof, the Agreement shall be amended as follows:

1.01. The definition “*Fee Agreement*” set forth in Section 1 of the Agreement is hereby amended in its entirety and as so amended shall be restated to read as follows:

“*Fee Agreement*” means the Third Amended and Restated Fee Agreement dated as of July 22, 2024, between the City and the Bank, as the same may be amended and supplemented from time to time and any agreement entered into in substitution thereof.

1.02. The Agreement is hereby amended by adding thereto a new Section 27 to appear in the appropriate numerical sequence and to read as follows:

SECTION 27. REGISTRATION OF AGREEMENT.

Notwithstanding anything herein to the contrary, the Issuer shall take actions necessary to register this Agreement, the Fee Agreement and any amendment or supplement related to this Agreement or the Fee Agreement, in each case, which require the approval of the New York City Comptroller, within sixty (60) days of the related effective date of this Agreement, the Fee Agreement or any such related amendment or supplement; *provided, however*, that the Issuer's failure to pay when due any amount due hereunder or under the Fee Agreement shall not constitute an Event of Default under Section 7(a)(i) of this Agreement if such registration is in process and the Issuer has requested the Bank to provide additional information or to take additional action necessary to complete such registration; *provided, further*, that the Bank shall use its best efforts to provide such additional information and take any action reasonably requested by the Issuer or the New York City Comptroller in order to complete the registration process; *provided, further*, that the Issuer shall make any payments when due hereunder or under the Fee Agreement within forty-five (45) days of the completion of such registration. Notwithstanding anything in this Section 27 of the Agreement to the contrary, any delay in the registration of this Agreement, the Fee Agreement or any such related amendment or supplement shall not relieve the Issuer of its obligation to pay such amount or amounts due and owing to the Bank (including any accrued Letter of Credit Fees) hereunder or under the Fee Agreement upon successful registration with the New York City Comptroller; *provided, however*, that the Issuer agrees to use its best efforts to register this Agreement, the Fee Agreement or any such related amendment or supplement, in each case, within forty-five (45) days of the Issuer's receipt of such additional information or such additional action reasonably requested from the Bank.

1.03. Subparagraphs (iii) and (vi) of Section 6(a) of the Agreement are hereby amended in their entireties and as so amended shall be restated to read as follows:

(iii) notice of any reduction, suspension, withdrawal or termination in the long-term ratings assigned to the Issuer's Debt by any of Fitch, Moody's and Standard & Poor's (except in connection with a refunding, defeasance, redemption or payment in full of such Debt) forthwith upon the occurrence thereof (and in any event within five (5) Business Days thereof); *provided, however*, the Issuer will be deemed to have complied with the requirement to provide such information if notice of such event is timely filed by the Issuer on the Electronic Municipal Market Access database;

(vi) promptly, notice of any proposed amendments to any Related Document or the Remarketing Agreement and copies of all actual amendments thereto; *provided, however*, the Issuer will be deemed to have complied with the requirement to provide such information if notice of such proposed amendment is timely filed by the Issuer on the Electronic Municipal Market Access database;

1.04. The notice information of the Bank set forth below the Bank's signature block in the Agreement is hereby amended and restated in its entirety and as so amended shall be restated to read as follows:

Bank of America, N.A.

[REDACTED]

with a copy to:

Bank of America, N.A.

[REDACTED]

2. CONDITIONS PRECEDENT.

This Amendment shall become effective on the Effective Date subject to the satisfaction of or waiver by the Bank of all of the following conditions precedent:

2.01. Delivery by the Issuer to the Bank of an executed counterpart of this Amendment and the Third Amended and Restated Fee Agreement dated as of July 22, 2024 (the “*Third Amended and Restated Fee Agreement*”), between the Issuer and the Bank.

2.02. Delivery to the Bank by the Issuer of (a) evidence that the Issuer has authorized this Amendment and the Third Amended and Restated Fee Agreement and the performance of its obligations under the Agreement, as amended by this Amendment and (b) a customary certificate executed by appropriate officers of the Issuer respecting the incumbency and signature of the officer of the Issuer executing this Amendment and the Third Amended and Restated Fee Agreement.

2.03. All other legal matters pertaining to the execution and delivery of this Amendment shall be reasonably satisfactory to the Bank and its counsel.

3. REPRESENTATIONS AND WARRANTIES OF THE ISSUER.

3.01. The Issuer hereby represents and warrants that the following statements shall be true and correct as of the date hereof:

(a) the representations and warranties of the Issuer contained in Section 5 of the Agreement and each of the Related Documents are true and correct on and as of the date hereof as though made on and as of such date (except to the extent the same expressly relate to an earlier date and, for purposes of this Section 3.01(a), the reference to the Issuer's Official Statement dated February 8, 2017 set forth in Section 5(d)(iii), 5(e) and Section 5(k) of the Agreement shall be deemed to refer to the Official Statement of the Issuer dated March 27, 2024, as supplemented by the Financial Plan of the City dated June 30, 2024; *provided, however*, for purpose of the representation in Section 5(k) of the Agreement, no representation is made as to information in the Official Statement (a) with respect to the "Yield" and "CUSIP" set forth on the inside cover pages, (b) with respect to the stabilization clause, (c) with respect to the information under the captions and/or subcaptions "SECTION II: THE BONDS--Book-Entry Only System" and "SECTION X: OTHER INFORMATION--Tax Matters" and "--Underwriting" (d) with respect to any characterization of the treatment of income on the Bonds described therein for tax purposes and (e) with respect to the information in Appendices B and C); and

(b) no Default or Event of Default has occurred and is continuing or would result from the execution of this Amendment.

3.02. In addition to the representations given in Section 5 of the Agreement, the Issuer hereby represents and warrants as follows:

(a) The execution, delivery and performance by the Issuer of this Amendment, the Third Amended and Restated Fee Agreement and the Agreement, as amended hereby, are within its powers, have been duly authorized by all necessary action and do not contravene any law, rule or regulation, any judgment, order or decree or any contractual restriction binding on or affecting the Issuer.

(b) No authorization, approval or other action by, and no notice to or filing with, any governmental authority or regulatory body is required for the due execution, delivery and performance by the Issuer of this Amendment, the Third Amended and Restated Fee Agreement or the Agreement, as amended hereby.

(c) This Amendment, the Third Amended and Restated Fee Agreement and the Agreement, as amended hereby, constitute legal, valid and binding obligations of the Issuer enforceable against the Issuer in accordance with their respective terms, except that (i) the enforcement thereof may be limited by principles of sovereign immunity and by bankruptcy, reorganization, insolvency, liquidation, moratorium and other laws relating to or affecting the enforcement of creditors' rights and remedies generally, as the same may be applied in the event of the bankruptcy, reorganization, insolvency,

liquidation or similar situation of the Issuer, and (ii) no representation or warranty is expressed as to the availability of equitable remedies.

4. REQUEST FOR EXTENSION OF LETTER OF CREDIT SCHEDULED EXPIRATION DATE.

The Issuer hereby requests that the Bank extend the Letter of Credit Scheduled Expiration Date of the Letter of Credit to July 29, 2027, and the Bank upon the effectiveness of this Amendment agrees to such request and will deliver to the Tender Agent an Extension for the Letter of Credit substantially in the form attached hereto as Exhibit A to effectuate such extension.

5. MISCELLANEOUS.

Except as specifically amended herein, the Agreement shall continue in full force and effect in accordance with its terms. Reference to this Amendment need not be made in any note, document, agreement, letter, certificate, the Agreement or any communication issued or made subsequent to or with respect to the Agreement, it being hereby agreed that any reference to the Agreement shall be sufficient to refer to, and shall mean and be a reference to, the Agreement, as hereby amended. In case any one or more of the provisions contained herein should be invalid, illegal or unenforceable in any respect, the validity, legality and enforceability of the remaining provisions contained herein shall not in any way be affected or impaired hereby. All capitalized terms used herein without definition shall have the same meanings herein as they have in the Agreement. THIS AMENDMENT SHALL BE CONSTRUED IN ACCORDANCE WITH AND GOVERNED BY THE LAW OF THE STATE OF NEW YORK.

This Amendment may be simultaneously executed in several counterparts, each of which shall be an original and all of which shall constitute but one and the same instrument. This Amendment may be delivered by the exchange of signed signature pages by facsimile transmission or by e-mail with a pdf copy or other replicating image attached, and any printed or copied version of any signature page so delivered shall have the same force and effect as an originally signed version of such signature page.

6. FEES.

Within ninety (90) days of the date of receipt of an invoice, the Issuer shall pay to or reimburse the Bank for the reasonable legal fees of counsel to the Bank (in an amount not to exceed \$7,500 in connection with the preparation of this Amendment and the Third Amended and Restated Fee Agreement.

[SIGNATURE PAGES FOLLOW]

IN WITNESS WHEREOF, the parties hereto have caused this Amendment to be duly executed and delivered by their respective officers hereunto duly authorized as of the Effective Date.

THE CITY OF NEW YORK

By: 
Name: 
Title: Deputy Comptroller for Public Finance

By: _____
Name: 
Title: Deputy Director for Finance of the
Office of Management and Budget

Approved as to form, and certified as to legal
authority:

By: _____
Name: 
Title: Acting Corporation Counsel

IN WITNESS WHEREOF, the parties hereto have caused this Amendment to be duly executed and delivered by their respective officers hereunto duly authorized as of the Effective Date.

THE CITY OF NEW YORK

By: _____
Name: [REDACTED]
Title: Deputy Comptroller for Public Finance

By:  _____
Name: [REDACTED]
Title: Deputy Director for Finance of the
Office of Management and Budget

Approved as to form, and certified as to legal
authority:

By: _____
Name: [REDACTED]
Title: Acting Corporation Counsel

IN WITNESS WHEREOF, the parties hereto have caused this Amendment to be duly executed and delivered by their respective officers hereunto duly authorized as of the Effective Date.

THE CITY OF NEW YORK

By: _____
Name: [REDACTED]
Title: Deputy Comptroller for Public Finance

By: _____
Name: [REDACTED]
Title: Deputy Director for Finance of the
Office of Management and Budget

Approved as to form, and certified as to legal
authority:

By: Albert Rodriguez
Name: [REDACTED]
Title: Acting Corporation Counsel

BANK OF AMERICA, N.A.

By: 
Name: 
Title: Senior Vice President

STATE OF NEW YORK)
) SS
COUNTY OF NEW YORK)

On the 22nd of July, 2024, before me personally came [REDACTED] to me known who, being by me duly sworn, did depose and say that he is a Senior Vice President of Bank of America, N.A., described in and which executed the above instrument and that he signed his name thereto by order of a power of attorney thereof.

/s/ [REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]

**EXHIBIT A TO THE FOURTH AMENDMENT TO
REIMBURSEMENT AGREEMENT**

EXTENSION

The City of New York

The Bank of New York Mellon,
as Fiscal Agent and Tender Agent
240 Greenwich Street
New York, New York 10286

Our Irrevocable Letter of Credit No. [REDACTED] (the “*Letter of Credit*”) is hereby extended to July 29, 2027.

This Extension relates to The City of New York’s General Obligation Bonds, Fiscal 2008, Series L, Subseries L-3 (Adjustable Rate Bonds) (CUSIP No. 64966G4N9).

All other terms of the Letter of Credit shall remain unchanged.

BANK OF AMERICA, N.A.

By: _____
Name:
Title:

Bank of America, N.A.							
Letter of Credit Services							
NYC GO Series 2008 L-3 2024 Amendment							
Fee	0.53%						
<u>Contract Start and End Dates</u>	<u>Principal</u>	<u>Coverage</u>	<u>Commitment</u>	<u>FY</u>	<u>Legal Fees</u>	<u>Estimated Fees</u>	
7/30/2024	80,000,000	690,411	80,690,411	FY 25			
6/30/2025	80,000,000	690,411	80,690,411	FY 25	7,500.00		
6/30/2026	80,000,000	690,411	80,690,411	FY 26			
6/30/2027	80,000,000	690,411	80,690,411	FY 27			
7/29/2027	80,000,000	690,411	80,690,411	FY 28			



CITY OF NEW YORK
OFFICE OF THE COMPTROLLER
BRAD LANDER

JOHN K. KATSORHIS
AGENCY CHIEF CONTRACTING OFFICER

BUREAU OF ADMINISTRATION

MEMORANDUM

To: Michael D'Ambrosio, Bureau Assistant Comptroller

From: Adeline Affonso-Wagner, Unit Chief of Purchasing Services

Date: August 14, 2024

Re: Late Registration for Fourth Amendment to Reimbursement Agreement for
Letter of Credit Services for New York City General Obligation FY08 L-3 with
[REDACTED]

The above referenced agreement with [REDACTED], [REDACTED] 015 20080030237-
00033, PIN#01508PFIN025 is being registered late due to administrative delays.

Please feel free to contact me at 212-6697383 if any additional questions arise.
Thank you for your attention to this matter.

REQUEST FOR CONTRACT CHANGE, MODIFICATION OR AMENDMENT

(For Other than Capital Construction/Construction Related Contracts Only)

CONTRACTING OFFICER [REDACTED]		PHONE [REDACTED]
CONTACT PERSON [REDACTED]		PHONE [REDACTED]
USER AGENCY (If other than above)		
CONTRACT TITLE Fourth Amendment to Reimbursement Agreement for Letter of Credit Services for New York City General Obligation FY 2008 L-3		
REGISTRATION [REDACTED]		PIN: [REDACTED]
ORIGINAL CONTRACT TERM: 7/16/20 - 7/30/21 NEW CONTRACT TERM: 7/29/24 - 7/29/27		
AMOUNT OF ORIGINAL AWARD \$ [REDACTED]		
FUNDING SOURCE ☒ Expense <u>100</u> % ☐ Capital _____ % ☐ State _____ % ☐ Federal _____ % ☐ Other _____ %		
CURRENT CONTRACT AMOUNT [REDACTED] CURRENT CHANGE [REDACTED] TOTAL CONTRACT AMOUNT [REDACTED]		
CONTRACTOR: Bank of America, N.A.		☒ EIN ☐ SSN 94-1687665
AGENCY CHIEF CONTRACTING OFFICER APPROVAL  _____ John Katsorhis <u>08</u> / <u>06</u> / <u>2024</u> Date		

CONTRACT CHANGE AND MODIFICATION REPORT

A. TYPE OF CHANGE, MODIFICATION OR AMENDMENT

The termination date of Contract #20080030237 registered with Bank of America, N.A. will be extended from July 29, 2024 to July 29, 2027. The maximum contract amount must also be adjusted to include fees for this term extension.

B. NEED FOR CHANGE, MODIFICATION OR AMENDMENT

Liquidity facilities allow the City to issue variable rate bonds which typically reduce the interest rates the City must pay on its bonds. They also ensure that bonds are purchased in the event of a failed remarketing. Pursuant to Local Finance Law, variable rate bonds with a put feature are required to have letters of credit or liquidity facilities backing them. Due to the nature of these services, the personnel, expertise and financial wherewithal are not available within the agency.

The City has made numerous attempts to seek cost-effective liquidity facilities for its variable rate bonds. The City has met, and continues to meet, with several of the major banks in this market who are reserving credit capacity for valued clients with whom they have long-term and broad-based banking relationships. If a bank offers to extend its current facilities without materially changing the terms of the agreement (other than the fee), the City will, almost always, extend. This is the situation with this contract as Bank of America, N.A. has agreed to extend this agreement through July 29, 2027.

Effective July 22, 2024, the Letter of Credit Agreement was extended to July 29, 2027.

C. ADJUSTMENT OF CONTRACT PRICE

The price under the contract's fee agreement decreased through negotiations with Bank of America N.A. from 56 basis points to 53 basis points.

D. ADJUSTMENT OF TIME PERFORMANCE

N/A